

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Muskan Bhadauria	Team: Squad #07	CCRB Case #: 202412294	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 01/17/2024 4:36 PM	Location of Incident: Park Avenue and East 71st Street	18 Mo. SOL 7/17/2025	Precinct: 19
Date/Time CV Reported Mon, 02/12/2024 4:45 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Sun, 12/15/2024 3:16 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Harley Greco	10322	965154	BK COURT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Irene Prentzas	27045	968718	019 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Harley Greco	Force: Police Officer Harley Greco kicked § 87(2)(b)	A . Substantiated
B . PO Harley Greco	Force: Police Officer Harley Greco pulled § 87(2)(b) hair.	B . Substantiated

Case Summary

On February 12, 2024, Sgt. Steve Siciliano of the 19th Precinct mandatorily reported this incident with IAB on behalf of § 87(2)(b). On December 15, 2024, the CCRB received the case.

At approximately 4:36 p.m. on January 17, 2024, members of the service from the 19th Precinct were canvassing the vicinity of Park Avenue and East 71st Street, Manhattan, in regard to a commercial robbery which had taken place earlier in the day. While canvassing, PO Ruchiran Dias of the 19th Precinct observed § 87(2)(b) vehicle travelling in the wrong direction on Park Avenue and when he approached her vehicle to redirect her, § 87(2)(b) struck PO Dias with her vehicle. § 87(2)(b) was immediately removed from her vehicle and placed under arrest, during which time PO Harley Greco, of the 19th Precinct at the time of incident and currently assigned to Brooklyn Court Section, kicked § 87(2)(b) in the head (**Allegation A: Force – Physical Force, Substantiated**) and pulled her hair (**Allegation B: Force – Physical Force, Substantiated**). § 87(2)(b) was removed to the 19th Precinct stationhouse where she was processed for Assault and five other charges related to her striking PO Dias with her vehicle.

25 Body-worn Camera (BWC) videos were yielded from the incident; the video of PO Irene Prentzas will be analyzed in this report (**Board Review 01**).

Findings and Recommendations

Allegation (A) Force: Police Officer Harley Greco kicked § 87(2)(b)

Allegation (B) Force: Police Officer Harley Greco pulled § 87(2)(b) hair.

Sergeant Steve Siciliano, of the 19th Precinct, filed this complaint with IAB when, upon reviewing BWC for the incident, he saw, on PO Prentzas' BWC, PO Greco kick § 87(2)(b) while she is handcuffed by other officers.

§ 87(2)(b) attorney, § 87(2)(b) requested the incident be investigated based upon BWC video and that their client not provide a statement due to her ongoing criminal and civil complaints, therefore no statement was obtained from § 87(2)(b). The arrest report (**Board Review 02**) lists the charges against § 87(2)(b) as assault with intent to cause serious injury with weapons, reckless endangerment, vehicular assault, obstruction of governmental administration, and operation of motor vehicle while impaired by drugs. The narrative stated that, while safeguarding a vehicle used for a robbery in the vicinity, observed a vehicle driving in the wrong direction of traffic. When PO Dias approached the vehicle, § 87(2)(b) repositioned her vehicle at PO Dias and accelerated towards him. PO Dias was hit by the vehicle and sustained fractures to his arms and legs. PO Dias was removed to § 87(2)(b) Hospital and § 87(2)(b) stated to transporting officers that she hit him on purpose because he would not move out of the way. § 87(2)(b) stated that she smoked marijuana, and marijuana was recovered from the vehicle's cup holder.

PO Prentzas' BWC video (**Board Review 01**) captures PO Prentzas running towards the incident location. At the 1:14 time stamp, § 87(2)(b) is seen being placed against the rear of a vehicle by three officers. PO Prentzas walks toward PO Diaz and back toward § 87(2)(b). At 1:26, PO Brown states "She fucking hit him with fucking car." At 1:37, § 87(2)(b) who is still against the rear of the vehicle, is heard yelling and at 1:39, she yells "Shut up. Fuck you! I don't give a fuck, kill me, kill me then!" At 1:55, a group of five officers pulls and brings § 87(2)(b) who is handcuffed, to the ground. PO Greco is seen walking around the group and stepping forward towards § 87(2)(b). PO Prentzas presses § 87(2)(b) back so she is lying on her stomach and states, "On the floor." § 87(2)(b) lies still on the floor with officers holding her down. At 2:08, a foot kicks

§ 87(2)(b) in her head, causing her glasses to fall from her face. PO Prentzas stands up and at 2:13, the BWC is angled upward to show that the foot was PO Greco's. At 2:26, a group of four officers begins to lift § 87(2)(b) states, "I took one of y'all's, I'll take every single one of y'all's." PO Greco grabs § 87(2)(b) head by her hair and pushes it downwards and begins to walk while continuing to hold § 87(2)(b) hair. Other officers continue to guide § 87(2)(b) to the transporting vehicle as PO Greco maintain contact with her hair.

PO Greco, in his CCRB statement (**Board Review 03**), states that he went to the incident location in response to a 10-13, when he heard an officer screaming over the radio. PO Greco parked on 72nd Street and Park Avenue and ran to PO Diaz. At some point when he was with PO Diaz, he looked up and saw § 87(2)(b) held against a car by two to three officers. He did not see a struggle between her and officers. Approximately one to two minutes later, PO Greco saw six to seven officers surrounding § 87(2)(b) and bringing her down to the ground. He was not sure why she was being brought to the ground and did not know if she was handcuffed. PO Greco remembered her yelling statements such as, "Free Palestine", "Kill all cops", and "Kill me" and her being aggressive. When PO Greco saw that the officers could not get her all the way onto the ground, he went over to them to assist. When PO Greco walked over to § 87(2)(b) she was face down on her stomach. He first walked around behind § 87(2)(b) but it was too crowded, so he then stood by her head. At this point, PO Greco still did not know if she was handcuffed because so many people were around her. PO Greco had no recollection of kicking § 87(2)(b) and did not remember feeling contact with her head from his shoes when he was by § 87(2)(b) head. When he saw the clip from PO Prentzas' BWC, he did confirm that his foot made contact with her head, but did not recall why he did so. PO Greco did see that she was restrained once she was pulled up by officers. Officers then transported § 87(2)(b) but she was resisting by not walking to the car herself. § 87(2)(b) was still screaming at this point. PO Diaz was 10 feet away from § 87(2)(b) and PO Greco made contact with § 87(2)(b) head to guide her face away from PO Diaz and towards the ground, so she could not spit or bite him or any other officers. PO Greco did not know if she had spit on officers before, but based on his experience, he felt that § 87(2)(b) may have spit on or bit officers because of what she was saying and her physical resistance.

NYPD Patrol Guide 221-01 and 221-02 details the specifications for the use of force, finding that officers' will use only the reasonable force necessary to gain control or custody of a subject. In all circumstances, any application or use of force must be reasonable under the circumstances. If the force used is unreasonable under the circumstances, it will be deemed excessive and in violation of Department policy. When appropriate and consistent with personal safety, members of the service will use de-escalation techniques to safely gain voluntary compliance from a subject to reduce or eliminate the necessity to use force. Members of the service shall not use any level of force to punish, retaliate or coerce a subject to make statements (**Board Reviews 04 and 05**).

BWC captures PO Greco kicking § 87(2)(b) in the head. § 87(2)(g)

Video evidence shows that § 87(2)(b) was handcuffed and restrained by five officers while lying face down on the ground and was not resisting in the moment PO Greco kicked her. § 87(2)(g)

BWC captures, while four officers are transporting a restrained § 87(2)(b) by her arms and

legs, PO Greco grabbing § 87(2)(b) hair and pulling her head downwards. § 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] § 87(2)(b) was handcuffed and being transported
by multiple officers, all of whom were effectively restraining her. § 87(2)(g)
[REDACTED]
[REDACTED].

Therefore, it is recommended that **Allegations A and B be Substantiated.**

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**Board Review 06**).
- PO Harley Greco has been a member of the service for seven years and has been a subject in three CCRB complaints and four allegations, none of which were substantiated. § 87(2)(g)
[REDACTED]

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- § 87(2)(b) filed a Notice of Claim with the City of New York claiming injuries to her head, face, back and limbs, emotional distress, anguish, and loss of enjoyment of life, and seeking \$5,000,000.00 as redress (**Board Review 07**). There is no 50H hearing scheduled.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 7

Investigator:	<u>Muskan Bhadauria</u> Signature	<u>Investigator Bhadauria</u> Print Title & Name	<u>March 28, 2025</u> Date
Squad Leader:	<u>Vanessa Rosen</u> Signature	<u>Manager Vanessa Rosen</u> Print Title & Name	<u>April 3, 2025</u> Date
Reviewer:	<u></u> Signature	<u></u> Print Title & Name	<u></u> Date